

21CHCV00794 21CHCV00794

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Case Number: 21CHCV00794 Hearing Date: August 31, 2026 Dept: F47

Dept. F47

Date: 8/31/26

TRIAL DATE: 10/5/26

Case #21CHCV00794

MOTION TO

DISMISS

Motion filed on 4/27/26.

MOVING PARTY: Defendant USABlueBook

RESPONDING PARTY: Plaintiff Estate of Rosa Pleitez, by
and through her husband, Rigoberto Pleitez

NOTICE: ok

RELIEF REQUESTED: An order dismissing Plaintiff Estate
of Rosa Pleitez, by and through her husband, Rigoberto Pleitez's Fourth Amended
Complaint as to Defendant USABlueBook (Doe 10, pursuant to CCP 583.210, et seq.
and 583.420.

RULING: The motion is granted.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of Plaintiff Estate of Rosa Pleitez, by and through her husband, Rigoberto Pleitez's claim that from 10/13/19 through at least 9/21/20, Decedent Rosa Pleitez (Decedent) was exposed to chemicals and caustic products produced, manufactured, distributed and/or sold by Defendant Miles Chemical Company, Inc. (Miles Chemical), Macdermid Enthone, Inc. (Macdermid) and others while employed as a janitor for Carbonite Industries in Riverside, California. It is alleged that Decedent developed catastrophic interstitial lung disease with major injury and disability that affected her ability to work and support herself and her family and ultimately, was a substantial factor in causing her death on or about 3/26/22.

On 10/8/21, Plaintiffs Rosa Pleitez and Rigoberto Pleitez filed the original complaint in this action asserting causes of action against certain named defendants and Does 1-200 for: (1) Strict Liability – Design Defect, (2) Strict Liability – Failure to Warn, (3) Negligence, (4) Breach of Implied Warranty and (5) Loss of Consortium.

As against Doe 13, the complaint alleged that “unknown chemicals and caustic products sold by DOES 1 through 200 contain recognized contaminants and caustic substances which are scientifically known to cause and/or contribute to the development of interstitial lung disease and directly caused and/or contributed to the development of Plaintiff’s interstitial lung disease.” (Complaint ¶¶5, 20, 42-43). On 5/24/23, following Decedent's death, the

Estate of Rosa Pleitez, by and through her husband, Rigoberto Pleitez (Plaintiff) substituted in for Decedent in the First Amended Complaint (FAC). A new cause of action for wrongful death was added in the First Amended Complaint and the breach of implied warranty and loss of consortium causes of action were eliminated. The claims for strict liability – design defect, strict liability – failure to warn and negligence were realleged against Does 1-200 under the 2nd cause of action titled survival action in the First Amended Complaint.

On 4/14/25, Plaintiff filed a Second Amended Complaint. On 8/21/25, Plaintiff filed a Third Amended Complaint. Both the Second and Third Amended Complaints asserted causes of action for: (1) wrongful death, (2) survival action, and (3) negligence, all arising from Decedent's death allegedly as a result of exposure to chemicals. USABlueBook was not a named defendant to the Second or Third Amended Complaint, was never named as a Doe therein, and was never served with the Second or Third Amended Complaint.

On 11/12/25, Plaintiff filed the operative Fourth Amended

Complaint (4AC) alleging causes of action for negligence for wrongful death, strict products liability and survival action.

On 1/6/26, Plaintiff filed a Doe amendment naming USABlueBook in place of Doe 10. USABlueBook was purportedly served with the Fourth Amended Complaint on 1/21/26.
(See Proof of Service filed 2/4/26; Millard Decl. ¶12).

On 4/27/26, USABlueBook filed and served the instant motion seeking an order dismissing Plaintiff's Fourth Amended Complaint as to Defendant USABlueBook (Doe 10) due to Plaintiff's unreasonable and unjustified delay in service of process pursuant to CCP 583.210 and 583.420. Plaintiff has not opposed or otherwise responded to the motion.

ANALYSIS

USABlueBook's Request for Judicial Notice (RJN) is granted.

CCP 583.210(a) provides that "[t]he summons and complaint shall be served upon a defendant within three years after the action is commenced against the defendant. For the purpose of this subdivision, an action is commenced at the time the complaint is filed."

CCP 583.250 provides:

"(a) If service is not made in an action within the time prescribed in this article:

(1) The action shall not be further prosecuted and no further proceedings shall be held in the action.

(2) The action shall be dismissed by the court on its own motion or on motion of any person interested in the action, whether named as a party or not, after notice to the parties.

(b) The requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute."

CCP 583.240 provides:

"In computing the time within which service must be made pursuant to this article, there shall be excluded the time during which any of the following conditions existed:

(a) The defendant was not amenable to the process of the court.

(b) The prosecution of the action or proceedings in the action was stayed and the stay affected service.

(c) The validity of service was the subject of litigation by the parties.

(d) Service, for any other reason, was impossible, impracticable, or futile due to causes beyond the plaintiff's control. Failure to discover relevant facts or evidence is not a cause beyond the plaintiff's control for the purpose of this subdivision."

The deadline is not extended by the fact that USABlueBook was named in place of a Doe defendant. See Higgins (2017) 15 CA5th 973, 975, 982; Barrington (1985) 39 C3d 146, 154; Norgart (1999) 21 C4th 383, 398-399. The court lacks jurisdiction to proceed where the mandatory service period has expired. Eghtesad (2020) 51 CA5th 406, 417. Here, USABlueBook was served in January 2026 which is more than four years after this action was commenced on 10/8/21. Moreover, none of the conditions set forth in CCP 583.240 for tolling the service period apply in this case.

As noted above, the original complaint in this action was filed on 10/8/21 naming Doe 10 as a defendant. Therefore, the deadline to serve USABlueBook, which was named in place of Doe 10, was 10/8/24. Also, as noted above, USABlueBook was not served until 1/21/26, well beyond the 3 year deadline. As such, dismissal of the claims against USABlueBook is mandatory. CCP 583.210(a); CCP 583.250.

Plaintiff's failure to timely serve USABlueBook is not excused by the addition of wrongful death and survival claims in the First Amended Complaint. The three-year

requirement contained in CCP 583.210 is only tolled when the “gravamen” of the complaint changes due to the assertion of new claims that are based upon “different operative facts.” Here, the

Complaint and the First Amended Complaint, as well as the Second, Third and Fourth Amended Complaints, are all based on the same operative facts (e.g. that USABlueBook, or Doe 10, allegedly failed to warn Decedent of the dangers of the chemical products to which she was exposed, resulting in her injury and eventual death by interstitial lung disease).

It has been held that a husband’s wrongful death claim arising from his wife’s death as a result of alleged medical malpractice concerned the same facts as, and thus related back to, the husband and wife’s original complaint for medical negligence and loss of consortium, filed prior to the wife’s death. See *Lamont* (1983) 142 CA3d 375, 380. Similarly, here, the First Amended Complaint relates back to Plaintiff’s original claims. Therefore, the three-year time limit under CCP 583.210 ran from the filing of the original Complaint.

Even if mandatory dismissal was not required under CCP

583.210 and CCP 583.250, discretionary dismissal under CCP 583.420(a)(1) is warranted. Regardless of whether the

service deadline is calculated from the original complaint or the First Amended

Complaint, Plaintiff did not serve USABlueBook within two years of filing. CCP 583.420 is intended “to foreclose unreasonable delay and compel diligent prosecution of litigation.” *Dubois* (1993) 12 CA4th 1689, 1700. Here, the original complaint was filed in 2021,

Plaintiff did not serve the named defendants until after the filing of the First Amended Complaint in 2023.

Further, Plaintiff did not name

or serve USABlueBook as Doe 10 until 2026.

Since the gravamen of this action has always been that the defendants

who “produced, manufactured, distributed and/or sold” the “heavy chemicals and caustic products” which Plaintiff alleges caused Decedent’s death, Plaintiff

cannot excuse the prolonged delay in identifying such defendants. More than six and a half years have passed since Decedent’s alleged exposure to these chemicals began. (See RJN Ex. A at ¶12). Allowing this action to proceed against USABlueBook would undermine the other purpose of CCP 583.420, which is “to promote justice by preventing surprises through the revival of claims that have been allowed to slumber until evidence has been lost, memories have faded, and witnesses have disappeared.” *Schumpert*

(1988) 198 CA3d 598, 603. Plaintiff’s

unexcused delay in serving USABlueBook and pursuing this action has unreasonably prejudiced USABlueBook warranting the dismissal of Plaintiff’s claims against it.

CONCLUSION

The motion is granted.